



FREE TEMPLATE • INDIE MUSIC INDIA

Artist Management Agreement (India)

This Artist Management Agreement ("Agreement") is entered into as of [DATE] between:

ARTIST: [Full Legal Name], residing at [Address], hereinafter referred to as "Artist" MANAGER: [Full Legal Name / Company Name], residing/registered at [Address], hereinafter referred to as "Manager"

1. Appointment

The Artist hereby appoints the Manager as the Artist's exclusive personal manager in the Territory during the Term. The Manager accepts this appointment subject to the terms and conditions set out in this Agreement.

2. Territory

This Agreement applies to: India (and, if mutually agreed in writing, worldwide).

3. Term

This Agreement shall commence on [Start Date] and continue for a period of [12/24] months ("Initial Term"), unless terminated earlier in accordance with Clause 13. Upon mutual written consent, the Agreement may be renewed for further terms.

4. Manager'S Duties

The Manager agrees to: _____

a) Advise and counsel the Artist on all aspects of the Artist's professional career including music, live performance, recording, and brand partnerships. b) Seek and negotiate engagements, recording agreements, publishing deals, endorsements, and other professional opportunities on the Artist's behalf. c) Liaise with booking agents, labels, publishers, DSPs, PR agencies, and promoters. d) Maintain accurate records of all transactions undertaken on behalf of the Artist. e) Consult the Artist before entering into any binding commitment.

5. Artist'S Duties

The Artist agrees to: _____

a) Engage in their professional career in a diligent and professional manner. b) Promptly inform the Manager of all professional approaches and offers received. c) Not enter into any agreement within the scope of this Agreement without the Manager's prior written consent. d) Maintain active and current social media profiles and digital presence. e) Honour all confirmed

bookings and professional commitments.

6. Commission

a) In consideration of the Manager's services, the Artist shall pay the Manager a commission of [15% / 20%] ("Commission Rate") of Gross Income earned by the Artist during the Term and arising from activities negotiated or materially advanced by the Manager. b) "Gross Income" means all fees, royalties, advances, and other income received by the Artist from live performances, recording agreements, publishing, brand partnerships, sync deals, and merchandising. c) Commission is NOT applicable to: income earned prior to this Agreement; income from activities entirely unrelated to the Manager's efforts; reimbursement of expenses. d) Post-Term Commission: For engagements negotiated during the Term but executed after termination, the Commission Rate reduces to [10%] for a period of [12] months following termination.

7. Accounting And Payment

a) The Manager shall maintain accurate books of account in relation to the Artist's income. b) Commission shall be invoiced monthly, with payment due within 15 days of invoice. c) The Artist authorises the Manager to receive income on the Artist's behalf, provided the Manager remits the Artist's share within 7 business days of receipt, accompanied by a written account. d) The Artist or their authorised representative may inspect the Manager's accounts on 7 days' written notice.

8. Expenses

a) The Manager may incur reasonable expenses in the course of carrying out their duties. All expenses above INR 5,000 per item require the Artist's prior written approval. b) Approved expenses shall be reimbursed by the Artist within 30 days of submission of receipts. c) The Manager shall not deduct expenses from the Artist's income without the Artist's written consent.

9. Gst And Taxation

a) The Manager's commission shall be subject to GST at the applicable rate. The Manager shall provide a valid GST invoice. b) TDS (Tax Deducted at Source) shall be deducted by the paying party in accordance with applicable provisions of the Income Tax Act, 1961. c) Both parties are responsible for their own tax compliance and filings.

10. Intellectual Property

a) Nothing in this Agreement transfers ownership of the Artist's music, recordings, compositions, name, likeness, or other intellectual property to the Manager. b) The Manager is granted a limited, non-exclusive licence to use the Artist's name, image, and likeness solely for the purposes of carrying out their duties under this Agreement.

11. Exclusivity

The Manager shall serve as the Artist's exclusive manager in the Territory during the Term. The Manager may manage other artists provided there is no conflict of interest, which shall be disclosed to the Artist in writing.

12. Confidentiality

Both parties agree to keep the terms of this Agreement and all business information shared during the Term strictly confidential, except as required by law.

13. Termination

a) Either party may terminate this Agreement by giving [60] days' written notice after the Initial Term. b) Either party may terminate immediately if the other party commits a material breach and fails to remedy it within 30 days of written notice. c) The Agreement terminates immediately upon the death or permanent incapacity of either party. d) Upon termination, all outstanding commission on income already received shall remain payable.

14. Dispute Resolution

a) The parties shall first attempt to resolve any dispute through good-faith negotiation. b) If unresolved within 30 days, disputes shall be referred to arbitration under the Arbitration and Conciliation Act, 1996, with a sole arbitrator appointed by mutual consent. c) The seat of arbitration shall be [City], India. The language of arbitration shall be English.

15. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of India, including the Indian Contract Act, 1872, and the Copyright Act, 1957.

16. Entire Agreement

This Agreement constitutes the entire agreement between the parties and supersedes all prior discussions, representations, and agreements. Any amendment must be in writing and signed by both parties.

Signatures

Artist: _____ Date: _____ [Full Legal Name]

Manager: _____ Date: _____ [Full Legal Name / Authorised Signatory]

Witness 1: _____ Date: _____ Witness 2: _____

Date: _____

NOTE: This template is a starting point. Both parties should obtain independent legal advice before signing. Consider engaging a lawyer familiar with Indian entertainment law.

Free to use from indiemusicindia.com. Share the page, not the file.